



National Disability Policy: A Progress Report, 2026

National Council on Disability

October 7, 2026

National Council on Disability (NCD)
1331 F Street NW, Suite 850
Washington, DC 20004

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National Council on Disability

An independent federal agency making recommendations to the President and Congress to enhance the quality of life for all Americans with disabilities and their families.

Letter of Transmittal

October 7, 2026

President Donald J. Trump
The White House
1600 Pennsylvania Avenue, NW
Washington, DC 20500

Dear Mr. President:

The National Council on Disability (NCD) is pleased to submit the enclosed 2026 Progress Report, which provides a statutorily required status update on the nation's advancements and successes in disability policies, along with recommendations about how to address the challenges that remain and require attention.

This report highlights policy developments that occurred over the past year in health care, transportation, education, employment, and technology. This year saw many positive developments for people with disabilities. For example, a strategic plan released by the National Institutes of Health will advance disability health research, consistent with NCD's recommendations. Furthermore, Congress maintained funding for many important programs that serve people with disabilities, and the year marked a historic high for labor force participation by people with disabilities.

As explained in the report, there are also several developments that have occurred since our last progress report that may present significant challenges for people with disabilities in the coming year. These include implementation of changes to Medicaid; delays in several accessibility regulations, including web accessibility regulations; a new interpretation of the landmark *Olmstead v. L.C.* Supreme Court decision by the U.S. Department of Justice (DOJ) that calls into question the right of people with disabilities to live in their communities; and the reintroduction of bills that could weaken the Americans with Disabilities Act (ADA).

The report makes several recommendations about ways to ensure that the rights of people with disabilities remain protected and that the goals of the ADA—equal opportunity, economic self-sufficiency, independent living, and full participation of people with disabilities in all aspects of society—are furthered. As this report is being finalized, NCD is actively working to pursue these important objectives by, among other initiatives, reaching out to DOJ to request a meeting to discuss their opinion regarding *Olmstead*; submitting comments to the Department of Health and Human Services regarding their rule implementing Medicaid community engagement requirements; and, of course, continuing to issue our advisement to you and Congress regarding the myriad issues facing people with disabilities. NCD remains ready to assist the Administration

and Congress in their efforts on behalf of people with disabilities to continue to advance policies that promote the goals of ADA for all people with disabilities across the nation.

Respectfully,

A handwritten signature in black ink, appearing to read "Neil Romano". The signature is fluid and cursive, with a large initial "N" and a long, sweeping underline.

Neil Romano
Acting Chairman

(The same letter of transmittal was sent to the President Pro Tempore of the U.S. Senate and the Speaker of the U.S. House of Representatives.)

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Keith Woods, Financial Management Analyst

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Executive Summary

The authorizing statute of the National Council on Disability (NCD) requires it to issue an annual report about disability policy.¹ This report presents, as appropriate, information about progress made in disability policies related to health, transportation, education, employment, and technology. The report also notes several areas of concern that may threaten the rights of people with disabilities in the coming year, while including recommendations for policy changes to protect and advance these rights.

Some of the key developments in disability policy related to health care this year included changes to the Medicaid program and changes to the budgets for federal agencies that provide health care. In alignment with NCD's longstanding work on health disparities for people with disabilities, the National Institutes of Health released a strategic plan for disability health research, and the Government Accountability Office issued a report about barriers to health care accessibility faced by people with disabilities.

As for disability policy related to transportation, people with disabilities continued to face barriers to accessible ground transportation, and their experiences were reinforced by new

data on these barriers. Some new services and programs started to address limited accessible ground transportation in some ways, although much more progress is needed. This year, data continued to show that people with disabilities face myriad barriers to air travel. Although some parts of a regulation addressing these barriers took effect, other parts were delayed. The Department of Transportation redirected some funding it would have received from penalties to improve an airline's systems for wheelchair handling. Yet mishandling of mobility devices remains a problem throughout the industry.

The year's developments in education policy were marked by change both in funding for educational programs and in the structure and staffing of the Department of Education. As the report is being finalized, responsibilities and funding for the education of students with disabilities continue to shift.

There were many positive developments in disability employment policy this year, including high rates of labor force participation; increased participation in competitive, integrated employment; and a decrease in the number of workers with disabilities earning less than the minimum wage.

This year saw many developments in technology that have the potential to improve the lives of people with disabilities, including artificial intelligence (AI). In Fiscal Year 2027, NCD will study AI as one of its policy priorities. This year's developments have shown how technology can be used to assist people with disabilities but also how it may be used to exclude or discriminate against them if appropriate guardrails, policies, and practices are not in place. For example, a report by the General Services Administration highlighted ways in which Federal Government technology is continuing to fall short of its obligation to ensure equal access for people with disabilities. And the decision by the Departments of Justice and Health and Human Services to delay their web and mobile application accessibility regulations will leave people with disabilities waiting another year for accessibility.

The year also saw other legal impediments to advancing the rights of people with disabilities. For example, several bills were introduced that would require people with disabilities to provide businesses with specific notice of inaccessibility and give businesses additional time to fix accessibility barriers before enforcing people's rights under the Americans with Disabilities Act (ADA). Additionally, the Department of Justice reinterpreted the ADA and said that it does not require states to provide services to people with disabilities in the most integrated setting appropriate to, and desired by, the individual.

There will be a significant amount of work ahead in the year ahead in many areas of disability policy. This report outlines the recommendations NCD proposes to address the challenges that remain.

Recommendations

Health Care

- NCD recommends Congress:
 - Make home- and community-based services (HCBS) mandatory Medicaid services by creating a minimum standard set of services under Section 1905(a) of the Social Security Act.
 - Create a new, single HCBS authority to alleviate complexity and administrative costs. The legislation should align financial eligibility pathways, replace enrollment caps with functional eligibility criteria, and make Medicaid portable across state lines.
 - Maintain funding for the Administration for Community Living, University Centers for Excellence in Developmental Disabilities, and other programs serving people with disabilities while increasing funding for Centers for Independent Living.
 - Pass legislation codifying the U.S. Department of Health and Human Services (HHS) model curricula for U.S. medical, nursing, and other health care professional schools.
 - Designate people with disabilities as a Special Medically Underserved Population under the Public Health Service Act.
- NCD recommends states:
 - Carefully evaluate the impact of any changes to their Medicaid programs.
 - Ensure that any changes to HCBS or provider rates will not lead to unnecessary institutionalization of people with disabilities or place people with disabilities at serious risk of unnecessary institutionalization.

(continued)

Health Care, *continued*

- Maximize work requirement exemptions for people with disabilities and family caregivers to the greatest extent permitted by federal law and reduce the burdens of complying with work requirements on people with disabilities as much as possible. For example:
 - Allow applicants and enrollees to self-attest that they are exempt from the work requirement because they are “medically frail” or have “special medical needs” whenever permitted by federal law.
 - Do not require reverification of eligibility for a disability-related exemption more frequently than required by federal law.
- Apply for the Medicaid waiver made available through the One Big Beautiful Bill Act to expand eligibility for HCBS.
- NCD recommends HHS and the U.S. Department of Justice (DOJ) aggressively enforce their regulations about accessible medical diagnostic equipment.
- NCD recommends HHS:
 - Aggressively enforce the nondiscrimination provisions of its updated Section 504 regulation.
 - Develop and disseminate model disability clinical care curricula for all U.S. medical, nursing, and other health care professional schools consistent with Section 5307 of the Patient Protection and Affordable Care Act.
 - Propose a rule to make these curricula mandatory.

Transportation

- NCD recommends companies, state and local governments, federal agencies, and Congress implement all of the recommendations NCD described in its 2025 report to increase access to wheelchair-accessible, on-demand ground transportation options.
- NCD recommends Congress:
 - Pass legislation that requires all transportation network companies (TNCs), taxi companies, and autonomous vehicle (AV) companies that deploy fleets of robotaxis to provide and maintain an active percentage of wheelchair-accessible vehicles (WAVs) in each community where they operate.

Transportation, *continued*

- Amend the Air Carrier Access Act (ACAA) to establish a statutory private right of action that allows individuals to recover compensatory and punitive damages and attorneys' fees for violations of the ACAA.
- NCD recommends the U.S. Department of Transportation (DOT):
 - Incentivize partnerships between AV tech companies and vehicle manufacturers for the design and manufacture of fully autonomous WAVs and an autonomous universal system that safely secures wheelchairs and wheelchair users.
 - Amend its Americans with Disabilities Act (ADA) regulation to require taxi services, TNCs, and autonomous taxi services to have a percentage of WAVs in service and available in each locality where they operate.
 - Vigorously enforce the ADA and related regulations within this space.
 - Maintain or expand the protections it previously established for air travelers who use wheelchairs.

Education

- Schools should not receive federal funds if their policies and procedures lead to the unnecessary, inappropriate, and disproportionate restraint and seclusion of children with disabilities.
- NCD recommends Congress fully fund the Individuals with Disabilities Education Act, either by gradually increasing funding to the current maximum amount of 40 percent of the average per pupil expenditure or by using a more evidence-based funding formula.
- NCD recommends Congress and the U.S. Department of Education (ED) allocate funding for student mental health services.
- ED should continue to play an important role in the education of students with disabilities, including through robust oversight and enforcement of disability rights laws.

Employment

- NCD recommends Congress:
 - Pass legislation phasing out the Section 14(c) certificate program.
 - Pass legislation to phase out the AbilityOne Program.
 - Replace the AbilityOne Program by amending Section 503 of the Rehabilitation Act to require federal contractors to employ a certain percentage of people with significant disabilities or who are blind.
- NCD recommends the U.S. Department of Labor resume its efforts to issue regulations that would cease issuing new Section 14(c) certificates and phase out existing Section 14(c) certificates.

Artificial Intelligence and Other Technology

- NCD recommends legislation addressing discriminatory impacts of artificial intelligence (AI) and algorithms include people with disabilities as a protected group that cannot be discriminated against.
- NCD recommends policymakers establish regulations to ensure that AI technologies are built on data sets that include people with disabilities.
- NCD encourages policymakers, developers, and manufacturers to ensure that technology is accessible to and usable by people with disabilities. This is needed to provide equal access to health care, education, employment, transportation, and the many other services and activities that are offered through technology, which has become an essential part of all aspects of everyday life.
- NCD recommends Congress and federal agencies implement the recommendations in the U.S. General Services Administration's Fiscal Year 2025 Section 508 assessment.² In particular, NCD encourages Congress to explore legislative options to strengthen enforcement of Section 508 and accountability for compliance while increasing congressional oversight.

Legal Setbacks

- NCD recommends DOJ and HHS:
 - Refrain from making further changes to their web and mobile app accessibility regulations that would weaken accessibility protections.
 - Aggressively enforce the web and mobile app regulations after the compliance date.
 - Maintain their integration regulations, which remain the best reading of the ADA and the Rehabilitation Act.³
 - Continue to enforce *Olmstead v. L.C.*, the integration regulations, Section 504, and the ADA to ensure that people with disabilities can live in the most integrated settings appropriate to their needs.
- NCD recommends agencies promulgate regulations through the traditional notice-and-comment rulemaking process so that people with disabilities have opportunities to participate in the process of developing regulations that affect them.
- NCD recommends states continue to provide HCBS to people with disabilities rather than requiring them to live in institutional settings to receive services.

Acronym Glossary

ACAA	Air Carrier Access Act
ACCESS Act	ADA Compliance for Customer Entry to Stores and Sites Act
ACL	U.S. Department of Health and Human Services, Administration for Community Living
ADA	Americans with Disabilities Act
AI	artificial intelligence
AV	autonomous vehicle
CMS	Centers for Medicare & Medicaid Services
DOJ	U.S. Department of Justice
DOT	U.S. Department of Transportation
ED	U.S. Department of Education
ED OCR	U.S. Department of Education, Office for Civil Rights
FY	fiscal year
GAO	U.S. Government Accountability Office
GSA	U.S. General Services Administration
HCBS	home- and community-based services
HHS	U.S. Department of Health and Human Services
ICT	information and communication technology
IDEA	Individuals with Disabilities Education Act
NCD	National Council on Disability
NIH	National Institutes of Health
OBBBA	One Big Beautiful Bill Act
OSEP	U.S. Department of Education, Office of Special Education and Rehabilitative Services, Office of Special Education Programs
OSERS	U.S. Department of Education, Office of Special Education and Rehabilitative Services
PPACA	Patient Protection and Affordable Care Act
RIF	reduction in force
TNC	transportation network company
UCEDDs	University Centers for Excellence in Developmental Disabilities
VA	U.S. Department of Veterans Affairs
WAV	wheelchair-accessible vehicle

Section 1: Health Status and Health Care

Although many policy developments this year pose challenges for people with disabilities' access to health care, there were also several positive developments.

Health Research

In January 2026, the National Institutes of Health (NIH) announced its first strategic plan for disability health research.⁴ The plan will shape which studies and projects receive funding through 2030. It is aligned with many of NCD's recommendations related to the health of people with disabilities.

According to NIH, its disability health research seeks to understand and address the effects of medical conditions, nonmedical factors, and their interaction on the health and well-being of people with disabilities.⁵

Themes of the strategic plan include whole-person health, inclusion of people with disabilities in research, interdisciplinary collaboration, and technology. The goals include advancing the science of disability health by supporting innovative, rigorous, person-centered research and supporting accessible, state-of-the-art disability health research resources and infrastructure.⁶

NCD's Prior Findings

- As of August 2004, "[s]ixty one million Americans, or 26% of U.S. adults, live with a disability and are routinely excluded from clinical trials, thereby limiting their access to life-changing or even life-saving healthcare resources. Despite the designation by the National Institutes of Health of people with disabilities as a population with health disparities, implicit and explicit bias, which results in exclusion in clinical trials, contributes to poorer health outcomes for people with disabilities than their non-disabled peers."⁷

Among other objectives, the NIH strategic plan will support research to reduce disparities in health outcomes for people with disabilities; develop and disseminate resources to help researchers and institutions ensure that their research facilities, equipment, technology,

[T]he NIH strategic plan will support research to reduce disparities in health outcomes for people with disabilities...

and information are accessible; develop programs, policies, and resources to maximize the inclusion of people with disabilities as participants in clinical research; and promote robust public participation and community engagement in disability health research activities.⁸

NCD's Prior Findings

- According to a policy brief that NCD updated in April 2025, “[h]ealth disparities between persons with disabilities and their nondisabled counterparts have not materially improved in the 16 years since NCD published its 2009 seminal report, *The Current State of Health Care for People with Disabilities*.⁹ Today, in the United States, if you are a person with a physical, intellectual, or developmental disability, your life expectancy is less than that of someone without disabilities. . . . You are significantly more likely to have unmet medical, dental, and prescription needs. If you are a woman with a disability, you are likely to receive poorer maternity care and less likely to have received a Pap smear test or a mammogram. If you are a pregnant woman with a disability, you have a much higher risk for severe pregnancy- and birth-related complications and eleven times the risk of maternal death. If you are an adult who is Deaf or hard of hearing, you are three times as likely to report fair or poor health as compared to those who do not have hearing impairments.”¹⁰

Medicaid

In July 2025, President Trump signed Public Law 119-21, also known as H.R. 1 or the One Big Beautiful Bill Act (OBBBA), into law. OBBBA requires changes to Medicaid, which provides health care to many people with disabilities.¹¹

OBBBA created a new way for states to provide home- and community-based services (HCBS) such as personal care assistance to people who would not have been eligible for

help accessing HCBS before. Beginning in 2028, states can apply for a new kind of Medicaid waiver.¹² A Medicaid waiver allows states to “waive,” or get permission not to comply with, some requirements that usually apply to Medicaid programs. This new waiver will allow states to provide HCBS even when people do not meet an institutional level of care. This is the standard that states follow to decide whether Medicaid will pay for someone to get services in

a nursing facility or other long-term care facility. People generally need to meet an institutional level of care before they can get HCBS, but this waiver will make it easier

People generally need to meet an institutional level of care before they can get HCBS, but this waiver will make it easier to qualify if states apply for the waiver.

to qualify if states apply for the waiver. In addition to the new waiver, OBBBA authorized \$100 million to support delivery of HCBS through other waivers.¹³

NCD's Prior Findings

- "Through Home- and Community-Based Services waivers, which provide states flexibility in how and to whom they offer Medicaid benefits, an alternative to institutionalization can be offered by providing services in the community. . . ." ¹⁴

OBBBA also included more than \$900 billion in cuts to federal Medicaid spending between 2025 and 2034.¹⁵ States will need to find ways to adjust their budgets to account for this reduction in federal funding.

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optional services within the Medicaid program, these services can be limited when states need to make budget cuts, unlike other services such as nursing facility care, which are mandatory and cannot be

Because HCBS that many people with disabilities depend on in their daily lives are considered

cut. Some states are already proposing cuts to HCBS.¹⁶

NCD's Prior Findings

- "The institutional bias hinders the goal of community integration. . . . It continues to be significantly easier to place someone in a nursing home or a group home than in their own home in the community."¹⁷

OBBBA changes several requirements around eligibility redeterminations. When someone undergoes an eligibility redetermination, the state

reconsiders whether they are still eligible for Medicaid. Depending on their circumstances and how their state decides to implement OBBBA,

people with disabilities may need to go through eligibility redeterminations more often than they used to.¹⁸ It can be difficult for some people with disabilities to navigate this process, and if they do not follow the right steps in time, they will no longer have Medicaid coverage.

OBBBA also adds new work requirements for Medicaid recipients who live in states that have expanded eligibility for Medicaid under the Patient Protection and

Affordable Care Act (PPACA). People who are “medically frail” or otherwise have “special medical needs” and others are exempt from the work requirements. This means that some people with disabilities are exempt.¹⁹ People with disabilities who qualify for an exemption from these requirements will have to navigate more bureaucratic processes to show that they should be able to stay on Medicaid. Communication difficulties, lack of documentation or identification,

inaccessible forms and systems, lack of internet access, lack of transportation, and difficulty understanding and following directions, among other difficulties, may make it difficult for many people with disabilities to do.²⁰ The

way states interpret and implement the law will influence how people with disabilities’ access to Medicaid is affected.

In June 2026, the Centers for Medicare & Medicaid Services (CMS) issued a regulation implementing the work requirements.²¹ Among

many other things, the regulation explains how states need to interpret the exclusions from work requirements that may apply to people with disabilities. Someone who qualifies for an exclusion does not have to meet the work requirements. CMS said that to qualify for an

exclusion from the work requirements, people with disabilities will have to show not just that they have a qualifying disability but also that the disability “significantly

impairs” their ability to meet the work requirements.²² Until the end of 2027, states may accept a person’s own statement that this is true as proof that they do not have to comply. But CMS said that starting in 2028, after someone uses their own statement as proof once, they will need to show documentation that proves both of these things if the state doesn’t already have documentation.²³ However, it may be difficult for people with disabilities to get and submit this

documentation on time if, for example, they have difficulty understanding the requirements, are not currently being treated by a medical provider who is willing to complete the paperwork, need to wait for an appointment, have difficulty getting transportation to an appointment or finding

an accessible medical office, do not have access to the technology for a telehealth appointment, or have disabilities that affect their cognitive or executive functioning. It may also be difficult for states to figure out if people with disabilities

The way states interpret and implement the law will influence how people with disabilities’ access to Medicaid is affected.

It may also be difficult for states to figure out if people with disabilities qualify for the [work requirement] exclusion because the health agencies that assess whether someone is eligible for Medicaid do not usually assess whether someone is able to work...

qualify for the exclusion because the health agencies that assess whether someone is eligible for Medicaid do not usually assess whether someone is able to work, and the analysis is more subjective than an income standard or the existence of a medical diagnosis.

NCD will continue to monitor state implementation of these requirements and the impact on people with disabilities. In the meantime, NCD submitted a series of questions via comments to clarify these new requirements and their impact on people with disabilities.

NCD's Prior Findings

- “Medicaid is a lifeline for people with disabilities who are less likely to have access to employer-sponsored health coverage, are more likely to have low incomes and may not be able to cover their healthcare costs independently. Even with private insurance, [people with disabilities] may not be able to get the care they need since private plans typically do not cover the range of services available through Medicaid.”²⁴

NCD's Current Recommendations

NCD recommends Congress:

- Make HCBS mandatory Medicaid services by creating a minimum standard set of services under Section 1905(a) of the Social Security Act.
- Create a new, single HCBS authority to alleviate complexity and administrative costs. The legislation should align financial eligibility pathways, replace enrollment caps with functional eligibility criteria, and make Medicaid portable across state lines.

NCD recommends states:

- Carefully evaluate the impact of any changes to their Medicaid programs.
- Ensure that any changes to HCBS or provider rates will not lead to unnecessary institutionalization of people with disabilities or place people with disabilities at serious risk of unnecessary institutionalization.
- Maximize work requirement exemptions for people with disabilities and family caregivers to the greatest extent permitted by federal law and reduce the burdens of complying with work requirements on people with disabilities as much as possible. For example:
 - Allow applicants and enrollees to self-attest that they are exempt from the work requirement because they are “medically frail” or have “special medical needs” whenever permitted by federal law.

NCD's Current Recommendations, *continued*

- Do not require reverification of eligibility for a disability-related exemption more frequently than required by federal law.
- Apply for the Medicaid waiver made available through the OBBBA to expand eligibility for HCBS.

Restructuring of Federal Agencies and Services

Congress has maintained funding for many programs that affect people with disabilities' health and well-being.

The spending bill that Congress passed in February 2026 maintains funding for the Administration for Community Living (ACL), Protection and Advocacy organizations, and University Centers for Excellence in Developmental Disabilities (UCEDDs).²⁵ ACL helps people with disabilities access community-based services, and it also advocates for the needs of people with disabilities, older adults, and caregivers. Among other functions, Protection and Advocacy organizations in each state and territory provide legal services to people with disabilities and investigate allegations of abuse and neglect in institutions. UCEDDs act as liaisons between academic institutions and the community, conducting

research and policy analysis, providing training and continuing education, and providing other community services. Their activities address a range of issues that are vital to allowing people with disabilities to thrive, ranging from early intervention services to supported employment.²⁶ The February 2026 spending bill will enable these programs to continue to

support people with disabilities and help them receive community-based services.²⁷

The spending bill also maintains funding for respite care services, which can reduce caregiver burnout and help people with disabilities remain at home.²⁸

In April 2026, the President issued his budget request to

Congress for the fiscal

year that begins in October 2026.²⁹ This budget request would increase funding for Centers for Independent Living while maintaining funding for Protection and Advocacy organizations and state councils on developmental disabilities.

This [FY27] budget request would increase funding for Centers for Independent Living while maintaining funding for Protection and Advocacy organizations and state councils on developmental disabilities.... close ACL and eliminate funding for UCEDDs and other programs, including the Paralysis Resource Center and the Limb Loss Resource Center.

The budget request would close ACL and eliminate funding for UCEDDs and other programs, including the Paralysis Resource Center and the Limb Loss Resource Center.³⁰

It is unclear how the many important services and supports that these organizations provide would be able to continue if Congress does not authorize funding.

NCD's Current Recommendation

- NCD recommends Congress maintain funding for ACL, UCEDDs, and other programs serving people with disabilities while increasing funding for Centers for Independent Living.

Health Disparities

Reports released this year confirmed that people with disabilities continue to experience health disparities and barriers to accessing health care. These publications are consistent with NCD's extensive work to document and reduce disability disparities in health care. They confirm that people with disabilities still experience barriers at every stage of the health care process, from getting in the door to checking in at the front desk and from the waiting room to the exam room. These barriers may be physical, attitudinal, technological, or communication related, among others. Many of the hurdles that people with disabilities continue to face could be reduced or eliminated by sufficient training for medical professionals and their support staff.

For example, the Government Accountability Office (GAO) issued a report about barriers

to health care accessibility faced by people with disabilities.³¹ In doing so, GAO noted that it reviewed NCD's reports, which are cited several times.³² GAO found that people with disabilities continue to experience several types of barriers to health care access, many of which have been discussed in NCD's reports and recommendations. These include

[GAO] described how a lack of training can cause providers to rely on stereotypes and misconceptions in their care of people with disabilities, which can be further barriers to health care access.

barriers caused by the features of medical facilities and medical equipment, barriers caused by inaccessible technology, and difficulty communicating with providers. GAO also noted lack of training

of medical staff as a barrier that impedes individuals with disabilities' receipt of health care. They described how a lack of training can cause providers to rely on stereotypes and misconceptions in their care of people with disabilities, which can be further barriers to health care access.³³

NCD's Prior Findings

- “The ADA has had limited impact on how health care is delivered for people with disabilities. Significant architectural and programmatic accessibility barriers remain, and health care providers continue to lack awareness about steps they are required to take to ensure that patients with disabilities have access to appropriate, culturally competent care, and about incentives for implementing such steps.”³⁴
- “The absence of professional training on disability competency issues for health care practitioners is one of the most significant barriers that prevent people with disabilities from receiving appropriate and effective health care.”³⁵

NCD's Current Recommendations

- NCD recommends the U.S. Department of Health and Human Services (HHS) and the U.S. Department of Justice (DOJ) aggressively enforce their regulations about accessible medical diagnostic equipment.
- NCD recommends HHS:
 - Aggressively enforce the nondiscrimination provisions of its updated Section 504 regulation.
 - Develop and disseminate model disability clinical care curricula for all U.S. medical, nursing, and other health care professional schools consistent with Section 5307 of the PPACA.
 - Propose a rule to make these curricula mandatory.
- NCD recommends Congress:
 - Pass legislation codifying the HHS model curricula for U.S. medical, nursing, and other health care professional schools.
 - Designate people with disabilities as a Special Medically Underserved Population under the Public Health Service Act.

Read more about NCD's work on health care: <https://www.ncd.gov/policy-areas/health-care/>

Section 2: Transportation

Accessible transportation continued to be a pressing issue for people with disabilities over the past year.

Transportation is an important gateway to accessing employment, education, health care, and recreation, among other important parts of life. Despite some improvements in accessible ground transportation, much more is still needed, particularly for wheelchair users. This year also brought some pauses in regulatory efforts to improve air travel for people with disabilities, as described further in this section.

Ground Transportation

In July 2025, NCD issued a report examining the current state of ground

transportation in the United States for people with mobility disabilities, particularly wheelchair users. Among other things, the report found that many communities lack on-demand, wheelchair-accessible ground transportation. Millions of Americans who use wheelchairs continue to be

“left at the curb” by door-to-door, on-demand options such as taxis and transportation network companies (TNCs) such as Uber and Lyft,³⁶ while people who do not need wheelchair-accessible vehicles (WAVs) can get a ride in minutes.³⁷ NCD’s report highlighted the need for more wheelchair-accessible transportation.

The recent National Core Indicators survey of older adults and people with disabilities served by publicly funded long-term services

and supports programs reinforced NCD’s findings about the impact that a lack of transportation can have on people’s lives. The survey found that among those who say they cannot take part in activities, 31 percent

Millions of Americans who use wheelchairs continue to be ‘left at the curb’ by door-to-door, on-demand options such as taxis and transportation network companies... such as Uber and Lyft.

say the reason is transportation. Among those who say they have unmet needs, 28 percent say they need help with transportation, and among those who say they cannot always see their friends or family, 24 percent say the reason is transportation.³⁸

NCD's Prior Findings

- “[M]any barriers prevent the progress needed to provide an adequate number of [wheelchair accessible vehicles or] WAVs for wheelchair users who require them to travel. The lack of WAVs contributes to social isolation, negative mental, and emotional impacts, and it impedes or prevents employment, schooling, health care, parenting duties, recreational opportunities, and to the independence that most individuals enjoy as a matter of course.”³⁹

People with disabilities who use service animals also face barriers to using ground transportation, including denial of service by rideshare drivers. Both federal and state governments have recently taken steps to try to address this ongoing problem. In September 2025, DOJ sued Uber, stating, “For too long, blind riders have suffered repeated ride denials by Uber because they are traveling with a service dog.”⁴⁰ The lawsuit also alleges that Uber imposes impermissible surcharges on people with disabilities by charging cleaning fees, shedding fees, and cancellation fees to riders who use service animals after denying them service.⁴¹ In March 2026, the district court denied Uber’s motion to dismiss the case, allowing DOJ’s litigation to proceed.⁴² As of the writing of this report, the litigation is ongoing. At the state level, in March 2026, the Minnesota Department of Human Rights reached a settlement with Lyft

after a college student who is blind alleged that she was repeatedly denied rides while traveling with her service dog. The settlement requires Lyft to update its policies and driver education, warn drivers who attempt to cancel a ride for a passenger traveling with a disclosed service animal that doing so violates the law, and pay a monetary settlement to the student.”⁴³

A recent settlement agreement will help expand access to wheelchair-accessible airport shuttles at more than 70 locations nationwide.

Finding accessible shuttle services can be another barrier for people who need WAVs to travel. A recent settlement agreement will help expand access to wheelchair-accessible

airport shuttles at more than 70 locations nationwide. SuperShuttle agreed to require its affiliates to have WAVs available during all hours when customers can book non-WAV shuttles at the same cost. SuperShuttle will also adopt mandatory training for its customer service staff and modify its reservations systems to allow customers to book WAVs online using the same methods as customers who do not need WAVs.⁴⁴

NCD's Current Recommendations

- NCD recommends companies, state and local governments, federal agencies, and Congress implement all of the recommendations NCD described in its 2025 report to increase access to wheelchair-accessible, on-demand ground transportation options.
- In particular, NCD recommends Congress pass legislation that requires all TNCs, taxi companies, and autonomous vehicle (AV) companies that deploy fleets of robotaxis to provide and maintain an active percentage of WAVs in each community where they operate.
- NCD also recommends the Department of Transportation (DOT):
 - Incentivize partnerships between AV tech companies and vehicle manufacturers for the design and manufacture of fully autonomous WAVs and an autonomous universal system that safely secures wheelchairs and wheelchair users.
 - Amend its ADA regulation to require taxi services, TNCs, and autonomous taxi services to have a percentage of WAVs in service and available in each locality where they operate.
 - Vigorously enforce the ADA and related regulations within this space.

Air Transportation

As NCD noted in its 2025 progress report, in June 2025, DOT announced that it was reviewing a rule that provided additional protections for wheelchair users in air travel. During the review period, DOT will not take enforcement action against regulated entities for failing to comply with the new or revised requirements contained in the rule.⁴⁵ Individuals cannot enforce the Air Carrier Access Act (ACAA), so DOT enforcement

plays a critical role in protecting people's rights. When people with disabilities are injured or their wheelchairs are damaged by an airline, they lose dignity and independence. They also must wait for costly repairs of their customized wheelchairs, which can sometimes take months. The risk of injury or wheelchair damage can hinder someone who uses a wheelchair from traveling by air, which makes business and personal travel more difficult, time consuming, or impossible.

NCD's Prior Findings and Recommendations

- NCD urged DOT to continue to enforce the rule while it is under review. NCD advised that DOT enforcement of the rule was “necessary to address the serious problems wheelchair users experience when traveling by air, which can impact their safety, dignity, and even health. Damage to individuals with disabilities and/or their wheelchairs by an airline can mean both short and long term loss of independence and costly repairs which can take months to complete. These occurrences chill an individual’s ability to travel with confidence whether it is for business or pleasure.”⁴⁶ DOT declined this recommendation.

On September 30, 2025, DOT announced that it will continue not enforcing four provisions of the rule while it considers a new rulemaking. The four protections that will not be enforced are:

1. presuming that there has been a violation of the law when passengers’ wheelchairs or other assistive devices are not timely returned in the condition they were received;
2. specifying the frequency of required refresher training of airline employees and contractors;
3. requiring pre-departure notifications to passengers that check wheelchairs or scooters of their right to contact a Complaint Resolution Official and file a claim; and
4. reimbursing passengers for the difference between the fare on a flight a wheelchair or scooter user took and the fare on a flight that the wheelchair or scooter user

would have taken if his or her wheelchair or scooter had been able to fit on the flight.

In August 2026, DOT extended the period during which it will not enforce these parts of the rule from December 31, 2026, until at least April 30, 2027.⁴⁷ It also announced that DOT will not enforce a provision of another rule about accessible restrooms on airplanes, which required annual training for flight attendants

on how to assist in transporting people with disabilities to the airplane lavatory in an on-board wheelchair, until at least April 30, 2027.⁴⁸ Until DOT

decides whether to move forward with a new rule, these parts of DOT’s regulations will not be enforced.^{49,50} However, all other parts of the rule will still be enforced, and passengers with disabilities will continue to have the same protections under the ACAA that they did before these rules. For example, airlines must return all assistive devices in the same condition that they were received, and they must repair

...DOT announced that it will continue not enforcing four provisions of the rule while it considers a new rulemaking.

all damage to mobility devices or replace the devices.⁵¹ Airlines must also promptly provide assistance to passengers with disabilities with moving through the airport, including wheelchair assistance or sighted guides.⁵² Although DOT is not currently enforcing specific regulatory timelines for training, training staff and contractors about providing safe and dignified assistance to passengers with disabilities still plays an important role in improving customers' experience. It will also help airlines meet their ongoing obligations.

One example of DOT's enforcement of the ACAA is its order against American Airlines. As NCD reported in last year's progress report, on October 23, 2024, DOT announced a \$50

million penalty against American Airlines. DOT's investigation found that the airline had provided unsafe transfer assistance that resulted in injuries and undignified treatment of wheelchair users, failed to provide prompt wheelchair assistance, and mishandled thousands of wheelchairs.⁵³ Of the \$50 million penalty, the airline was supposed to pay \$25 million to the United States Treasury and use the other \$25 million to compensate affected passengers and take steps to prevent similar incidents in the future. In December 2025, DOT amended the order so that more

than \$16 million that was due to the government will instead be spent on improving American Airlines' equipment and systems for wheelchair handling.⁵⁴

DOT also published its annual data about disability-related complaints. The data, which reflects numerous complaints against every major U.S. air carrier, shows that barriers to air travel for people with disabilities continue to be industry wide and pervasive. The complaints reported include damage to assistive devices, issues with service animals, and failure to provide

assistance to passengers with disabilities, among other issues.⁵⁵

In February 2026, DOT published additional data about mishandled wheelchairs and scooters. Mishandled

wheelchairs and scooters are those that the airline reports as lost, damaged, delayed, or stolen. In 2025, air carriers reported that 9,910 wheelchairs and scooters were mishandled.⁵⁶ Although this 1.09 percent mishandling rate reflects a slight decrease from 2024, it means that more than 1 in every 100 passengers who flew with a wheeled mobility device experienced a problem with their device. These statistics do not include people with disabilities who choose not to fly because of the risk of injury or damage to their mobility devices.

[M]ore than 1 in every 100 passengers who flew with a wheeled mobility device experienced a problem with their device [in 2025].

NCD's Prior Findings

- "People with disabilities should not have to experience hundreds of acts of discrimination before some action is taken against an air carrier."⁵⁷

NCD's Current Recommendations

- As DOT continues further rulemaking, NCD recommends DOT maintain or expand the protections it previously established for air travelers who use wheelchairs.
- NCD again calls on Congress to amend the ACAA to establish a statutory private right of action that allows individuals to recover compensatory and punitive damages and attorneys' fees for violations of the ACAA.

Read more about NCD's work on transportation: <https://www.ncd.gov/newsroom/transportation/>

Section 3: Education

Education plays an important role in opening doors of opportunity for children with disabilities. Efforts to prevent unnecessary restraint and seclusion of students with disabilities, allocate grant funding for programs supporting students with disabilities and their teachers, and provide federal oversight can help students with disabilities access educational opportunities without discrimination.

Seclusion and Restraint

The Keeping All Students Safe Act was reintroduced in both the House and the Senate in December 2025. The legislation would ban

schools that receive federal funding from using seclusion and dangerous restraint techniques. It would also prohibit physically restraining children unless it is necessary to protect students and staff. Furthermore, it would provide grant funding to train school personnel in behavior management strategies and expand data collection about the use of seclusion and restraint.⁵⁸

Seclusion and restraint have a disproportionate impact on students with disabilities. Seventy-five percent of students who are subjected to seclusion have a disability, as do 81 percent of students who are physically restrained.⁶⁰

NCD's Prior Findings and Recommendations

- NCD has previously urged Congress to pass similar legislation, but the legislation has not passed. In 2018, NCD said that “[t]he proposed legislation recognizes and agrees with the position that NCD has taken that no school should receive federal funds when their policies and procedures lead to the unnecessary, inappropriate and disproportionate restraint and seclusion of children with disabilities. The Keeping All Students Safe Act recognizes that, while schools have a responsibility to maintain an educational environment that is conducive to learning, the use of seclusion and the use of mechanical, physical and chemical restraints is dangerous and can cause long-term harm and even death. NCD has consistently opposed the use of seclusion and aversive behavioral therapies, and likewise support the ban on these inappropriate forms of discipline in this legislation.”⁵⁹

NCD's Current Recommendation

- Schools should not receive federal funds if their policies and procedures lead to the unnecessary, inappropriate, and disproportionate restraint and seclusion of children with disabilities.

Funding

In May 2026, the Department of Education (ED) announced \$144 million in increased funding

that state and local

agencies can use for

their Individuals with

Disabilities Education

Act (IDEA) programs.

The funding can be used

for IDEA Part B, which

supports children and

youth age 3 through

21 years, or IDEA Part C, which supports early

intervention services for infants and toddlers

from birth through age 2 years and their

families.⁶¹ ED also issued

guidance clarifying that

states can use IDEA Part

C funding to help parents

who are expecting

infants with disabilities

access information so

that they can prepare to

support their children and

secure early intervention

services shortly after

birth.⁶²

In May 2026, the Department of Education (ED) announced \$144 million in increased funding that state and local agencies can use for their Individuals with Disabilities Education Act (IDEA) programs.

[S]tates can use IDEA Part C funding to help parents who are expecting infants with disabilities access information so that they can prepare to support their children and secure early intervention services shortly after birth.

The budget request that the President submitted to Congress for the fiscal year that begins in October 2026 includes more

than \$500 million in

additional funding for

IDEA. However, the

budget would also

remove specific funding

for parent education

centers, which help

parents advocate for their

children with disabilities,

technical assistance, and several other programs related to IDEA.⁶³

Over the past year, ED has canceled grants for programs serving students with disabilities.

Some—but not all—of the grant funding has been reinstated after litigation.

In September 2025, 25 projects related to special education were notified that their grants under Part D of IDEA would be canceled.

These grants funded ongoing programs serving

students with disabilities in 14 states. More than \$30 million in grant funding was canceled.⁶⁴ In June 2026, California, Rhode Island, and Wisconsin filed a lawsuit to have their grants reinstated.⁶⁵ The states say that the grant cancellations violated

In September 2025, 25 projects related to special education were notified that their grants under Part D of IDEA would be canceled. These grants funded ongoing programs serving students with disabilities in 14 states.

the Administrative Procedure Act because when canceling the grants, ED relied on new priorities that were not made public and did not provide sufficient explanation. As of the date this report was finalized, the lawsuit is still pending.

NCD's Prior Findings and Recommendations

- "NCD has repeatedly called on Congress to fully fund IDEA. The Federal Government's [ongoing] failure to meet its promised funding obligation has stressed many state and local budgets to the point where many districts routinely struggle to meet student needs. In 1975, Congress promised to cover 40 percent of the average cost to educate a child with disabilities. Congress later amended the law to say that the Federal Government would pay a "maximum" of 40 percent of per-pupil costs. [As of 2018], the Federal Government pays less than half of what it originally promised in 1975. Students with disabilities are particularly vulnerable to the adverse effects of funding issues, which can include delays in evaluations or rejection of requests for independent educational evaluations, inappropriate changes in placement and/or services, and failures to properly implement individualized education programs."⁶⁶

In December 2025, a district court judge ordered ED to reinstate about \$1 billion in separate grant funding for 16 states, which

schools had been using to hire mental health professionals to support students.⁶⁷

NCD's Prior Findings

- "NCD affirms its support for efforts to improve the quality, availability, and affordability of mental health services and supports. . . . The principal challenge is that access to mental health services is already compromised by deep and enduring stigma about seeking and receiving mental health treatment."⁶⁸

NCD's Current Recommendations

- NCD recommends Congress fully fund IDEA, either by gradually increasing funding to the current maximum amount of 40 percent of the average per pupil expenditure or by using a more evidence-based funding formula.
- NCD recommends Congress and ED allocate funding for student mental health services.

Department of Education Restructuring

This year has seen many changes at ED. Many employees who served students with disabilities were removed from their jobs as part of reductions in force (RIFs). The Department of Education's Office for Civil Rights (ED OCR) is responsible for enforcing civil rights laws, including disability rights laws, when ED provides federal funding. In practice, this means that ED OCR ensures that students with disabilities in elementary and secondary schools, colleges, and universities are not discriminated against because of their disabilities.

More than half of ED OCR's staff (299 of 575) received RIF notices in March 2025. ED OCR also closed 7 of its 12 regional offices.⁶⁹ This will reduce the office's capacity to review, investigate and resolve complaints of disability

discrimination.⁷⁰ In December 2025, ED OCR brought back approximately 250 employees to help address a discrimination complaints, but according to ED, their return is temporary while litigation about the RIFs proceeds.⁷¹

During the period of time that these ED OCR

staff members were on administrative leave due to RIFs, ED OCR dismissed approximately 90 percent of the more than 7,000 complaints it resolved. Historical dismissal rates have varied from 49 percent of resolved complaints in school year 2010–2011 to 81 percent in 2019–2020.⁷² It is not clear how many of the dismissed complaints related to disability discrimination.

According to a report released by the office of

Sen. Bernie Sanders (I-VT), ED OCR issued 78.7 percent fewer resolution agreements in disability discrimination cases in 2025 than it did in 2024. Of 1,887 pending cases, ED OCR resolved zero

More than half of ED OCR's staff (299 of 575) received RIF notices in March 2025. ED OCR also closed 7 of its 12 regional offices. This will reduce the office's capacity to review, investigate and resolve complaints of disability discrimination.

...ED OCR issued 78.7 percent fewer resolution agreements in disability discrimination cases in 2025 than it did in 2024.

cases about restraint and seclusion, 1 case about disability harassment, and 40 cases about whether students with disabilities were receiving a free appropriate public education.⁷³

ED has also sent RIF notices to 121 employees from the Office of Special Education and Rehabilitative Services (OSERS). This left fewer than half a dozen employees within the Office of Special Education Programs (OSEP),

which is part of OSERS. OSEP monitors compliance with IDEA and provides related technical assistance, serving 7.5 million students with disabilities. In addition, almost all employees in OSERS' Rehabilitation Services Administration received RIF notices. This office provides grants, technical assistance, and monitoring of state vocational rehabilitation services.⁷⁴

NCD's Prior Findings

- "The current system of monitoring and enforcement, while moving toward a more balanced approach of compliance and results, often fails to address noncompliance in a timely and effective manner."⁷⁵

The Trump Administration has proposed closing ED and moving special education services and oversight from ED to HHS. Disability advocates, including members of the Consortium for Constituents with Disabilities' Education Taskforce, have raised concerns that this could adversely affect students with disabilities.⁷⁶ The spending bill that Congress passed in February 2026 contains provisions that attempt to limit the Administration's ability to move special education oversight out of ED and to eliminate or reduce funding for some programs that serve students with disabilities and their parents.⁷⁷ However, at this time, ED's future remains unclear.

In June 2026, ED announced new partnerships with other agencies that ED says will reduce bureaucracy and better support students. OSERS will partner with HHS, and ED

OCR will partner with the DOJ.⁷⁸ It is not clear how these partnerships will work or what they will entail. The announcement notes that "the Trump Administration remains firmly committed to carrying out the Federal Government's duty to enforce the federal laws that provide rights and protections for individuals with disabilities and invest in critical support for them."⁷⁹ Disability rights groups such as the American Association of People with Disabilities have raised concerns that moving OSERS' responsibilities to HHS could risk segregating disability issues and reinforcing the medical model of disability. These groups have also raised concerns that DOJ may not have the resources to take on ED OCR's portfolio.⁸⁰ NCD will continue to monitor the effectiveness of these partnerships.

NCD's Current Recommendation

- ED should continue to play an important role in the education of students with disabilities, including through robust oversight and enforcement of disability rights laws.

Read more about NCD's work on education: <https://www.ncd.gov/policy-areas/education/>

Section 4: Employment

Disability Employment Trends

There have been some positive trends in disability employment this year. First, an October 2025 report by the Society for Human Resource Management found that as of July 2025, nearly 25 percent of people with disabilities participated in the labor force. This represents a historic high rate of labor force participation.

[A]s of July 2025, nearly 25 percent of people with disabilities participated in the labor force. This represents a historic high rate of labor force participation.... However,the unemployment rate for people with disabilities rose to 8.3 percent, which is about double the unemployment rate for people without disabilities.

Additionally, the civilian labor force of people with disabilities has increased by more than 30 percent since the beginning of the COVID-19 pandemic.⁸¹ However, the Bureau of Labor Statistics reports that the unemployment rate for people with disabilities rose to 8.3 percent, which is about double the unemployment rate for people without disabilities.⁸²

NCD's Prior Findings

- "Notwithstanding the ADA's positive impact, people with disabilities continue to struggle to obtain and retain employment. Barriers continue to exist that contribute to people with disabilities remaining largely outside of the nation's workforce. This is true despite subsequent federal legislation and billions spent annually on federal programs directed at assisting people with disabilities to enter the workforce and has resulted in continued poverty and a lack of adequate housing, transportation, and health care for millions of working-age people with disabilities."⁸³

People with disabilities' participation in competitive, integrated employment has continued to increase.

A 2026 report by United Cerebral Palsy and the American Network of Community Options and Resources found that in 2022, which is the most recent year for which data is available from the Institute for Community

Inclusion's National Survey of State Intellectual and Developmental Disabilities Agencies' Employment and Day Services,⁸⁴ the percentage of people with intellectual and developmental disabilities who are engaged in employment services and working in integrated employment reached 23.5 percent. This represents another historic high.

Simultaneously, that data shows that participation in facility-based work continued to decline.

The Institute for Community Inclusion found, based on data from the U.S. Department of

Labor's Wage and Hour Division, that the number of workers with disabilities earning less than the minimum wage has declined from an estimated 210,689 workers in 2013 to 59,537 workers in 2022.⁸⁵

The most recent data available from the U.S. Department of Labor at the time this report was finalized, which is from June 2026, reflects that 607 employers

are authorized, or have applied for authorization, to pay workers with disabilities less than minimum wage. These employers reported paying 31,273 workers with disabilities less than minimum wage during

the most recently completed quarter of their fiscal year.⁸⁶

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The most recent data... from June 2026, reflects that 607 employers are authorized, or have applied for authorization, to pay ...31,273 workers with disabilities less than minimum wage...

NCD's Prior Findings

- "NCD stands for the principle that no person with a disability should be discriminated against in an employment setting by paying less than the minimum wage available to all other citizens."⁸⁷
- "[E]ach person with a disability that can and wants to work in competitive integrated employment should be fully supported to do so, without delay."⁸⁸

NCD's Current Recommendations

- NCD recommends Congress pass legislation phasing out the Section 14(c) certificate program.
- NCD recommends the Department of Labor resume its efforts to issue regulations that would cease issuing new Section 14(c) certificates and phase out existing Section 14(c) certificates.

The Restoration of Employment Choice for Adults with Disabilities Act was introduced during the 119th Congress.⁸⁹ This bill proposes changes to Section 511 of the Rehabilitation Act, which limits the use of subminimum wages. Section 511 currently imposes strict guardrails before an individual with a disability who is age 24 years or younger can be paid subminimum wages and requires state vocational rehabilitation agencies to provide counseling, information, and referral services to explore competitive integrated employment options first.⁹⁰ Supporters frame this legislation as a measure to remove federal barriers to employment and expand worker choice. However, if this legislation is enacted, it could reestablish the pipeline to subminimum wage work for youth with disabilities. The bill would eliminate the requirement that individuals with disabilities who are age 24 years or younger receive pre-employment transition services and meet specified vocational rehabilitation criteria before beginning subminimum wage work.⁹¹ The bill would also limit career counseling and service referral requirements for those paid subminimum wages and lower Section 511's age threshold from 24 to 18 years.⁹² These changes and others in the proposed

legislation would remove vocational rehabilitation agencies' affirmative obligation to help integrate youth with disabilities into the workforce.

The AbilityOne Program

Since NCD last discussed the AbilityOne Program in 2024,⁹³ the U.S. AbilityOne Commission has implemented some changes.

For example, in December 2024, the Commission entered into updated cooperative agreements with SourceAmerica and National

Industries for the Blind.⁹⁴ In April 2025, the Commission announced that it had received clearance to use new data collection forms to assist with oversight.⁹⁵

In September 2025, the Commission issued a directive on strengthening compliance with domestic sourcing laws.⁹⁶ In April 2026, the Commission affirmed that it has zero tolerance for fraud, waste, and abuse.⁹⁷ In May 2026, the Commission issued a notice of proposed rulemaking that would require cooperative agreements and clarify the use of subcontracting in the program while seeking public comment on program fees.⁹⁸

The Commission has now implemented 25 of the 28 performance measures in its Fiscal

[I]f this legislation is enacted, it could reestablish the pipeline to subminimum wage work for youth with disabilities.

Year (FY) 2022–2026 strategic plan, initiated one performance measure, and removed two performance measures. The objectives of that strategic plan are transforming the program to expand competitive, integrated employment; identifying, publicizing, and supporting good and optimal jobs within the program; ensuring effective governance and results across the program; and engaging in partnerships to increase employment for AbilityOne employees within and beyond the program.⁹⁹ The Commission has begun to draft its next strategic plan.¹⁰⁰

The Commission has also updated many of its policies, including its series of compliance policies.¹⁰¹ Among other things, these updated policies set out a process for compliance monitoring and corrective action; establish a methodology for calculating and reporting on program fees, reaffirm that employees on AbilityOne contracts will not be paid a subminimum wage using a Section 14(c) certificate, and state that participating employees are entitled to the same legal protections and subject to the same legal standards and shall enjoy equal access to employment benefits as nondisabled employees performing the same or similar work. The policies also clarify how to conduct disability determinations for purposes of program eligibility.

The promulgation of these AbilityOne policy documents generally aligns with some of NCD's interim recommendations from our 2020 report.¹⁰² However, NCD made clear in that report that the interim recommendations were only contextually appropriate during the phaseout of the AbilityOne Program, which has not occurred.

In April 2026, NCD met with representatives of the AbilityOne Commission, SourceAmerica, National Industries for the Blind, and Melwood to listen to their views on the AbilityOne Program. NCD recently reviewed draft legislation that would update the Javitz-Wagner-O'Day Act, which governs the AbilityOne Program and is intended to modernize the program. NCD takes no position on this legislation.

NCD notes the U.S. Department of Labor's Office of Federal Contract Compliance Programs issued a final rule on August 21, 2026, that eliminates the 7 percent hiring benchmark for qualified individuals with disabilities in each job group, eliminates the requirement to invite job applicants and employees to self-identify as having a disability, and ends mandatory disability data collection and related utilization analyses. Federal contractors cannot discriminate against qualified people with disabilities and must continue to provide reasonable workplace accommodations.¹⁰³

NCD's Current Recommendations

- As stated in more detail in its 2020 report, NCD continues to recommend that Congress pass legislation to phase out the AbilityOne Program.
- NCD also continues to recommend that Congress replace the AbilityOne Program by amending Section 503 of the Rehabilitation Act to require federal contractors to employ a certain percentage of people with significant disabilities or who are blind.

Read more about NCD's work on employment: <https://www.ncd.gov/newsroom/employment/>

Section 5: Artificial Intelligence and Other Technologies

Artificial intelligence (AI) and other technologies have the potential to reduce accessibility barriers and improve the lives of people with disabilities. However, to do so, they must be implemented with care to ensure accessibility and nondiscrimination. This year, the use of AI and other technologies continued to expand across sectors, from education to health care and beyond. NCD will continue to monitor how AI and other technologies are being used to ensure that they are deployed in a nondiscriminatory manner and that their immense potential is applied to assist, rather than exclude or discriminate against, people with disabilities. The Council voted to study AI as one of its policy priorities in FY 2027.

Artificial Intelligence

Many other organizations share NCD's commitment to monitoring the impact of AI on people with disabilities. For example, this year, the American Association of People with Disabilities announced a partnership with digital engineering company GlobalLogic¹⁰⁴ to develop an Inclusive AI Governance Framework that

will "ensure fairness, privacy preservation, and accessibility for people with disabilities across all AI systems and models."¹⁰⁵ The Inclusive AI Governance Framework is intended to build these principles into AI solutions at the outset rather than making accommodations for people with disabilities after the technology is already being used.

NCD will continue to monitor how AI and other technologies are being used to ensure that they are deployed in a nondiscriminatory manner and that their immense potential is applied to assist, rather than exclude or discriminate against, people with disabilities.

Additionally, in partnership with the Lawyers' Committee for Civil Rights Under Law, Senator Ed Markey and Representatives Yvette Clarke, Summer Lee, Ayanna Pressley, and Pramila Jayapal introduced the AI Civil Rights Act (H.R. 6356 / S. 3308). Among other

things, the bill would prohibit algorithms from being used in a manner that is discriminatory.

Technology companies such as Microsoft are working to ensure that AI-generated images accurately portray people with disabilities. Microsoft found that because AI models are trained on publicly available content, they relied on limited and sometimes inaccurate representations of disabilities. As a result, some Microsoft products produced inaccurate images of people with disabilities, such as depicting an

individual wearing a blindfold when asked to generate an image of someone who is blind.¹⁰⁶ The company worked with individuals with disabilities, among others, to train its AI models to produce more authentic images.

AI has impacted the workforce, health care, education, and other parts of society. In the workforce, some people with attention deficit hyperactivity disorder, autism, dyslexia, and other disabilities have described how AI has helped

level the playing field for them in the workplace. AI tools such as notetakers, document readers, and automated schedulers can provide benefits for workers with disabilities.¹⁰⁷ However, AI can also be used in ways that discriminate against workers with disabilities. For example, when AI is used to evaluate applicants in interviews, it may screen out people who have different patterns of movement, eye contact, speech, or facial expressions that are caused by disabilities.¹⁰⁸

NCD's Prior Findings and Recommendations

- "Given the growing prevalence in the use of AI by employers to select, employ, and train job candidates, it is important that these tools and mechanisms are designed and assessed to prevent discrimination against people with disabilities."¹⁰⁹

The promise and potential danger of AI for people with disabilities are also evident in the health care sector. HHS announced a new Caregiver Artificial Intelligence Prize Competition. HHS states that the competition, which will award up to \$2.5 million, is intended to fund and recognize innovators who are developing tools that support caregivers in providing safe, person-centered care to people with disabilities at home while supporting employers by improving efficiency, scheduling, and training in the caregiving workforce.¹¹⁰

Although HHS' competition attempts to identify helpful uses of AI in providing health care, AI can also be deployed in ways that deny access to health care to people with disabilities. For example, the Bazelon Center for Mental

Health Law reports that in North Carolina, an algorithm was allegedly used to deny HCBS, and some private insurance providers are allegedly using algorithms to limit therapy visits.¹¹¹ In Nebraska, legal advocates are suing

In Nebraska, legal advocates are suing to challenge the state's use of an algorithm to cut Medicaid services for people with intellectual and developmental disabilities.

to challenge the state's use of an algorithm to cut Medicaid services for people with intellectual and developmental disabilities. The lawsuit alleges that the state violated due process by

using an assessment tool that does not explain the processes or criteria for funding decisions.¹¹² One study by Upturn¹¹³ found that even when an individual seeking HCBS gave the same responses to an assessment of their needs, the design of the algorithms states used to score the assessment and determine eligibility resulted in the person being eligible for services in some

states and ineligible in others. The algorithm is almost never made available, preventing

individuals from understanding and challenging the reasons for their denial.¹¹⁴

NCD's Prior Findings and Recommendations

- "While NCD's research recognizes the potential benefits of utilizing AI to improve healthcare outcomes for people with disabilities, there exist some vulnerabilities in these technologies that could negatively impact the diagnosis and treatment of people with disabilities and provide policymakers with erroneous information rather than accurate solutions. . . . Because AI is intended to develop the same decision-making capabilities as humans, NCD is similarly concerned that AI technologies may inadvertently develop the same assumptions and biases about people with disabilities. For this reason, NCD advises policymakers to review the use of AI in healthcare in general and establish regulations as needed to ensure that these technologies are built on data sets that include people with disabilities, so that implicit and explicit biases are not accidentally developed or 'learned.'"¹¹⁵

As in the health care context, use of AI in education can pose both challenges and opportunities. According to a report by the Center for Democracy and Technology, special education

teachers are increasingly using AI to help draft Individualized Education Program documents

[A]lthough AI may save teachers time and help them cope with high caseloads and staffing demands, its use could violate student privacy laws and disability rights laws, lead to inaccuracy, and replicate bias.

and plans required under Section 504 of the Rehabilitation Act. The report found that although AI may save teachers time and help them cope with high caseloads and staffing demands, its use could

violate student privacy laws and disability rights laws, lead to inaccuracy, and replicate bias.¹¹⁶

NCD's Current Recommendations

- NCD recommends legislation addressing discriminatory impacts of AI and algorithms include people with disabilities as a protected group that cannot be discriminated against.
- NCD recommends policymakers establish regulations to ensure that AI technologies are built on data sets that include people with disabilities.

Other Technologies

Technology has been used to increase accessibility for people with disabilities in many ways this year. For example, in Burleson, Texas, robots are being

used to survey sidewalks for accessibility. These robots use sensors and mapping technology to measure the slope and width of city sidewalks

[I]n Burleson, Texas, robots are being used to survey sidewalks for accessibility. These robots use sensors and mapping technology to measure the slope and width of city sidewalks and detect obstacles.

and detect obstacles.

City officials report that whereas the robots can measure six to seven miles of sidewalks per day, humans assigned to the same task typically cover about two miles of sidewalks. The city

is using the data gathered by these robots to help prioritize accessibility improvements to sidewalks.¹¹⁷

NCD's Prior Findings

- "Technology that enables access to the full opportunities of citizenship under the Constitution is a right. . . . The barriers that people with disabilities face in accessing technology are especially troubling because technology has the potential to transform how this population lives in a society designed for those with no functional differences. These barriers limit the ability of people with disabilities to participate in and contribute to society by reducing options to access important services that are available to people without disabilities. By expanding access to technology to everyone, people with disabilities will be able to take advantage of services that are intended to enhance the lives of all people in our society. Making technology accessible to people with disabilities will not only make our society more inclusive but will also serve to maximize the potential ability of a powerful but often excluded population to contribute to society."¹¹⁸

NCD's Current Recommendation

- NCD encourages policymakers, developers, and manufacturers to ensure that technologies are accessible to and usable by people with disabilities. This is needed to provide equal access to health care, education, employment, transportation, and the many other services and activities that are offered through technology, which has become an essential part of all aspects of everyday life.

Federal Technology Accessibility

In March 2026, the General Services Administration (GSA) released its annual assessment of the Federal Government's compliance with Section 508 of the Rehabilitation Act for FY 2025.¹¹⁹ Section 508 addresses the accessibility of information and communication technology (ICT) that is used by federal agencies. ICT includes websites and electronic documents. As the U.S. Access Board noted, "While the report highlights strengthened

Fewer than half of [federal] agencies' most-viewed or most-used ICT were fully conformant with applicable technical standards.

acquisition and procurement practices, the federal government continues to fall short of its legal and statutory obligations to ensure equal access for individuals with disabilities,

including federal employees and members of the public."¹²⁰

Agencies reported a low governmentwide average for Section 508 conformance of ICT,

at 1.96 on a 5-point scale. Fewer than half of agencies' most-viewed or most-used ICT were fully conformant with applicable technical standards.¹²¹

NCD's Prior Findings and Recommendations

- NCD has been calling for technology accessibility in the federal sector for two decades. In 2006, an NCD report stated, "Through the harnessing of the enormous buying power of the U.S. government, Section 508 has the potential to dramatically redefine the design practices of the telecommunications, computer and related industries."¹²²

NCD's Current Recommendations

- NCD recommends Congress and federal agencies implement the recommendations in GSA's FY 2025 Section 508 assessment.¹²³ In particular, NCD encourages Congress to explore legislative options to strengthen enforcement of Section 508 and accountability for compliance while increasing congressional oversight.

Read more about NCD's work on technology: <https://www.ncd.gov/policy-areas/technology/>

Section 6: Legal Setbacks

This year has seen some delays in legal protections for people with disabilities, as well as proposals that would weaken disability rights laws.

First, both DOJ and HHS delayed the deadlines for compliance with updated regulations that would have required regulated entities to meet certain technical standards for digital accessibility. DOJ's ADA regulation set accessibility standards for the web content and mobile apps that state or local governments provide or make available.¹²⁴ HHS' regulation under Section 504 of the Rehabilitation Act set accessibility standards for the web content and mobile apps that recipients of federal funding from HHS provide or make available and

prohibited discrimination in programs or activities that recipients provide through kiosks.¹²⁵

DOJ and HHS extended the compliance dates for both regulations by one year.

[B]oth DOJ and HHS delayed the deadlines for compliance with updated regulations that would have required regulated entities to meet certain technical standards for digital accessibility.

Although the agencies emphasized that regulated entities still have general obligations under existing laws to make the programs, services, and activities they offer using technology

accessible, the specific standards adopted by DOJ and HHS to define accessibility will not apply for an additional year. DOJ and HHS used interim final rules to adopt these extensions. This means that members of the public did not have a chance to comment on the extensions before they were adopted.

NCD's Prior Findings and Recommendations

- In 2016, NCD told DOJ that “it has been a relatively long time since [the internet and other technology] became mainstays, and yet scores of people with disabilities continue to wait for regulation to make these fundamental portals to full participation equally accessible to them.”¹²⁶ NCD emphasized that “the ability to access public website information for up-to-the-minute emergency communications can literally be the difference between life and death.”¹²⁷ NCD urged DOJ to adopt an “aggressive timeframe” for the web rule.¹²⁸ DOJ has now extended the timeframe it previously adopted.

Second, in June 2026, just days before the anniversary of the Supreme Court decision that held that unjustified institutionalization of people with disabilities is a form of discrimination prohibited by Title II of the ADA,¹²⁹ DOJ's Office of Legal Counsel issued a memo contradicting the settled interpretation of that decision.¹³⁰ DOJ opined that neither the Rehabilitation Act nor the ADA requires states to provide treatment to people with disabilities in the most integrated setting appropriate to their needs, the Supreme Court does not require this, and regulations by HHS and DOJ that require this are unlawful. This opinion marks a significant and deeply concerning change in the agency's position. DOJ and HHS' longstanding position requiring integration of people with disabilities when they do not oppose it, when it is appropriate to their needs, and when it can be reasonably accommodated has led to systemic

DOJ opined that neither the Rehabilitation Act nor the ADA requires states to provide treatment to people with disabilities in the most integrated setting appropriate to their needs, the Supreme Court does not require this, and regulations by HHS and DOJ that require this are unlawful.

change in state service systems, along with the deinstitutionalization of thousands of people with disabilities. Furthermore, on July 20, 2026, DOJ's Civil Rights Division published a notice in the *Federal Register* to clarify that its 2011 *Olmstead* guidance, which was updated in 2020, is not enforceable.¹³¹ This notice and the Office of

Legal Counsel's memo have already been cited in pending *Olmstead* litigation.¹³²

Third, Congress has recently introduced bills that would upend Title III of the ADA. The ADA 30 Days to Comply Act¹³³ and ADA Compliance for Customer Entry to Stores and Sites Act (ACCESS Act) of 2026¹³⁴ would

undermine the ADA's fundamental purpose to “provide clear, strong, consistent, enforceable standards addressing discrimination against individuals with disabilities.”¹³⁵ These bills would create a mandatory “notice and cure” period, which is akin to a waiting period, before someone

could file a federal lawsuit against a place of public accommodation (such as a store or a restaurant) that they allege is inaccessible. The ACCESS Act would apply to websites and mobile applications as well as physical places.¹³⁶ These bills would require that before filing a lawsuit under Title III, an individual would have to provide specific, written notice to the business detailing the accessibility barrier, wait a certain amount of time for the business to provide a plan to remove

the barrier, and then wait an additional period of time for the business to make “substantial progress” in removing the barrier. If these bills become law, an ADA lawsuit could only be filed if the business fails to fix the accessibility barrier within the allotted time, after someone with a disability explicitly asks them to do so. This would reverse the longstanding framework of the ADA, which has required businesses to proactively identify and remove barriers to access since 1990.

NCD’s Current Recommendations

- NCD recommends DOJ and HHS:
 - Refrain from making further changes to their web and mobile app accessibility regulations that would weaken accessibility protections.
 - Aggressively enforce the web and mobile app regulations after the compliance date.
 - Maintain their integration regulations, which remain the best reading of the ADA and the Rehabilitation Act.¹³⁷
 - Continue to enforce *Olmstead v. L.C.*, the integration regulations, Section 504, and the ADA to ensure that people with disabilities can live in the most integrated settings appropriate to their needs.
- NCD recommends agencies promulgate regulations through the traditional notice-and-comment rulemaking process so that people with disabilities have opportunities to participate in the process of developing regulations that affect them.
- NCD recommends states continue to provide HCBS to people with disabilities rather than requiring them to live in institutional settings to receive services.

Conclusion

Although NCD reports some progress this year, particularly in disability employment and toward recognizing health disparities faced by people with disabilities, the disability policy landscape this year posed many challenges. The Executive branch, Legislative branch, state and local governments, and private sector all have important roles to play in advancing and implementing policies

that support the goals of the ADA—equality of opportunity, economic self-sufficiency, independent living, and full participation of people with disabilities in all aspects of society, regardless of type or severity of disability—in the year ahead. Policymakers and federal agencies should continue to develop policies that support these important goals for all people with disabilities.

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National Council on Disability
1331 F Street, NW, Suite 850
Washington, DC 20004